

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

**EXECUTION APPLICATION
IN
COMPLAINT No: CC00600000023508**

Nirmal Developer Olympia
Aggrieved Buyers Association

..... Complainant

Versus

M/s. Nirmal Developers

..... Respondents

MahaRERA Registration No. **P51800012383**

Coram: Hon'ble Dr. Vijay Satbir Singh, Member-1

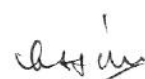
Adv. Aditya Deolekar appeared in person.

Adv. Atharva Dandekar a/w. Mrs. Vaishali Mohite for the respondent.

ORDER

(26th November, 2018)

1. The complainant Association of 33 members had filed the aforesaid complaint in respect of booking of their flats in the respondent's project known as '**Olympia C & D**' bearing MahaRERA registration No. **P51800012383** at Mulund (West), Mumbai. The said matter was heard on 3rd April, 2018 when both the parties settled the matter amicably and filed consent terms on record of MahaRERA. In view of the same, the complaint was disposed of. As per the said consent terms, the respondent has agreed to refund the amount paid by all the members of the complainants' association in 4 installments upto December, 2018 commencing from April, 2018. However, the respondent failed to comply with his obligation. Hence the complainants' association has filed the online execution application with MahaRERA.
2. The said application was heard on 16th Oct. 2018 by MahaRERA. During the hearing, the complainant argued that the respondent by filing the consent terms has agreed to refund the amount paid by the members of complainants' association as per the agreed terms on installment

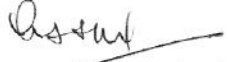


basis. He has paid first installment to all the members of the complainants' association and though the second installment was due in the month of July 2018, however, till date he has not paid the same. The complainant association further argued that the respondent has executed joint venture agreement with another promoter M/s. Shapoorji Pallonji without the consent of the allottees. The complainant, therefore, requested to direct the respondent to refund the entire outstanding payments and comply with the consent terms.

3. The respondent has argued that due to financial crunch, he could not make the payment on time. He, therefore, requested for additional time of three month to make the payment of the outstanding dues to the complainants' association. The respondent further clarified that he has not assigned this project to M/s. Shapoorji Pallonji. However, he executed the development management agreement whereby M/s. Shapoorji Pallonji has been appointed as project management consultant of the said project. He has not created any third party rights in the project and as on date he is the sole promoter. He further clarified that as per the consent terms agreed between the parties, he was liable to refund the entire amount to all the members of complainants' association by December 2018. However, he requested for three month's extension i.e. upto March 2019 to clear all the dues.
4. Consideration the submissions made by the respondent, the MahaRERA directed respondent to pay 2nd installment to the member's of the complainant's association, which was due on July, 2018 on or before 31st October, 2018. However the respondent failed to comply with the said directions of MahaRERA. The MahaRERA took a serious note of it and issued summoned for hearing to the respondent viz M/s. Nirmal Developers and the complainant viz Nirmal Developer Olympia Aggrieved Buyers Association and called them for hearing today.

During the said hearing both the parties have appeared through their respective advocates and made their submissions.

5. The MahaRERA examined the arguments advanced by both the parties as well as the record. In the present case, prima facie, it appears that both the parties have filed the consent terms duly signed by them whereby the respondent had agreed to pay the outstanding amount on four equal installments upto December, 2018. However, respondent could pay only one installment out of four installments as agreed in the consent terms. During the hearing on 20th Nov. 2018, the developer prayed for time till 5th Dec. 2018 to pay the second instalment, which was due on 31st July, 2018. The complainant accepted the same. The respondent/promoter is, therefore, directed to pay the second instalment to the members of complainant's association on or before 5th Dec. 2018 without fail. In case he fails to make the said payments, he shall pay a penalty of ₹1,00,000/- (Rupees one lakh only) to MahaRERA for everyday of delay during which such default continues as provided under section 63 of the RERA Act, 2016. Regarding the remaining instalments, the promoter proposed to make the payment of 3rd instalment by the end of Dec. 2018 and 4th instalment by 15th Jan. 2019. The complainants also accepted the same.
6. With the above directions, the execution application stands disposed of.


(Dr. Vijay Satbir Singh)
Member-1/MahaRERA